

IndiaCode

The Protection of Civil Rights Act, 1955

(ACT NO. 22 OF 1955)

[As on the 15th August 2026]

AMENDING ACT

The Untouchability (Offences) Amendment and Miscellaneous Provision Act, 1976 (106 of 1976).

LIST OF ABBREVIATIONS USED

Cl.,cls.	*for*	Clause, clauses.
Ins.	,,	Inserted.
Notifn.	,,	Notification.
S., ss.	,,	Section, sections.
Sch.	,,	Schedule.
Subs.	,,	Substituted.
w.e.f.	,,	with effect from.

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THE PROTECTION OF CIVIL RIGHTS ACT, 1955

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THE PROTECTION OF CIVIL RIGHTS ACT, 1955

ACT NO. 22 OF 1955[1]

[8*th May,* 1955.]

An Act to prescribe punishment for the [2][preaching and practice of "Untouchability"], for the enforcement of any disability arising therefrom and for matters connected therewith.

BE it enacted by Parliament in the Sixth Year of the Republic of India as follows:—

1. Short title, extent and commencement.—(*1*) This Act may be called [3][the Protection of Civil Rights Act], 1955.

(*2*) It extends to the whole of India.

(*3*) It shall come into force on such date[4] as the Central Government may, by notification in the Official Gazette, appoint.

2. Definitions.—In this Act, unless the context otherwise requires,—

[5] [(*a*) "civil rights" means any right accruing to a person by reason of the abolition of "untouchability" by article 17 of the Constitution;]

[6][(*aa*)] "hotel" includes a refreshment room, a boarding house, a lodging house, a coffee house and a cafe;

[7][(*b*) "place" includes a house, building and other structure and premises; and also includes a tent, vehicle and vessel;]

(*c*) "place of public entertainment" includes any place to which the public are admitted and in which an entertainment is provided or held.

Explanation.—"Entertainment" includes any exhibition, performance, game, sport and any other form of amusement;

(*d*) "place of public worship" means a place, by whatever name known, which is used as a place of public religious worship or which is dedicated generally to, or is used generally by, persons professing any religion or belonging to any religious denomination or any section thereof, for the performance of any religious service, or for offering prayers therein; [8][and includes—

(*i*) all lands and subsidiary shrines appurtenant or attached to any such place,

(*ii*) a privately owned place of worship which is, in fact, allowed by the owner thereof to be used as a place of public worship, and

(*iii*) such land or subsidiary shrine appurtenant to such privately owned place of worship as is allowed by the owner thereof to be used as a place of public religious worship;]

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1. Extended to Goa, Daman and Diu with modification by Reg. 12 of 1962, s. 3 and Sch.; to Dadra and Nagar Haveli by Reg. 6 of 1963, s. 2 and Schedule I (w.e.f. 1st July, 1965) and to Pondicherry by Reg. 7 of 1963, s. 3 and Sch. I (w.e.f. 1-10-1963).
2. Subs. by Act 106 of 1976, s. 2, for "practice of Untouchability" (w.e.f. 19-11-1976).
3. Subs. by s. 3, *ibid.*, for "the "Untouchability" (Offences) Act" (w.e.f. 19-11-1976).
4. 1st June, 1955, *vide* notifin. No. S.R.O. 1109(E), dated the 23rd May, 1955, *see* Gazette of India, 1955, Extraordinary Part II, s. 3.
5. Ins. by Act 106 of 1976, s. 4 (w.e.f. 19-11-1976).
6. Cl. (*a*) relettered as cl. (*aa*) by s. 4, *ibid.* (w.e.f. 19-11-1976).
7. Subs. by s. 4, *ibid.*, for cl. (*b*) (w.e.f. 19-11-1976).
8. Subs. by s. 4, *ibid.*, for certain words (w.e.f. 19-11-1976).

[1][(*da*) "prescribed" means prescribed by rules made under this Act;

(*db*) "Scheduled Castes" has the meaning assigned to it in clause (24) of article 366 of the Constitution;]

(*e*) "shop" means any premises where goods are sold either wholesale or by retail or both wholesale and by retail [2][and includes—

(*i*) any place from where goods are sold by a hawker or vendor or from a mobile van or cart;

(*ii*) a laundry and a hair cutting saloon,

(*iii*) any other place where services are rendered to customers.]

3. Punishment for enforcing religious disabilities.—Whoever on the ground of "untouchability" prevents any person—

(*a*) from entering any place of public worship which is open to other persons professing the same religion [3]* * * or any section thereof, as such person; or

(*b*) from worshipping or offering prayers or performing any religious service in any place of public worship, or bathing in, or using the waters of, any sacred tank, well, spring or water-course [4][river or lake or bathing at any ghat of such tank, water-course, river or lake] in the same manner to the same extent as is permissible to other persons professing the same religion, [3]* * * or any section thereof, as such person;

[5][shall be punishable with imprisonment for a term of not less than one month and not more than six months and also with fine which shall be not less than one hundred rupees and not more than five hundred rupees.]

Explanation.—For the purposes of this section and section 4 persons professing the Buddhist, Sikh or Jaina religion or persons professing the Hindu religion in any of its forms or developments including Virashaivas, Lingayats, Adivasis, followers of Brahmo, Prarthana, Arya Samaj and the Swaminarayan Sampraday shall be deemed to be Hindus.

4. Punishment for enforcing social disabilities.—Whoever on the ground of "untouchability" enforces against any person any disability with regard to—

(*i*) access to any shop, public restaurant, hotel or place of public entertainment; or

(*ii*) the use of any utensils, and other articles kept in any public restaurant, hotel, *dharamshala, sarai* or *musafir khana* for the use of the general public or of [6][any section thereof]; or

(*iii*) the practice of any profession or the carrying on of any occupation, trade or business [7][or employment in any job]; or

(*iv*) the use of, or access to, any river, stream, spring, well, tank, cistern, water-tap or other watering place, or any bathing ghat, burial or cremation ground, any sanitary convenience, any road, or passage, or any other place of public resort which other members of the public, or [8][any section thereof], have a right to use or have access to; or

1. Ins. by Act 106 of 1976, s. 4 (w.e.f. 19-11-1976).
2. Subs. by s. 4, *ibid*., for certain words (w.e.f. 19-11-1976).
3. The words "or belonging to the same religious denomination" omitted by s. 5, *ibid.* (w.e.f. 19-11-1976).
4. Ins. by s. 5, *ibid*. (w.e.f. 19-11-1976).
5. Subs. by s. 5, *ibid*., for certain words (w.e.f. 19-11-1976).
6. Subs. by s. 6, *ibid*., for certain words (w.e.f. 19-11-1976).
7. Ins. by s. 6, *ibid*. (w.e.f. 19-11-1976).

1. Subs. by Act 106 of 1976, s. 6, for certain words (w.e.f. 19-11-1976).

(*v*) the use of, or access to, any place used for a charitable or a public purpose maintained wholly or partly out of State funds or dedicated to the use of the general public or [1][any section thereof]; or

(*vi*) the enjoyment of any benefit under a charitable trust created for the benefit of the general public or of [1][any section thereof]; or

(*vii*) the use of, or access to, any public conveyance; or

(*viii*) the construction, acquisition, or occupation of any residential premises in any locality, whatsoever; or

(*ix*) the use of any *dharamshala, sarai* or *musafirkhana* which is open to the general public, or to [1][any section thereof]; or

(*x*) the observance of any social or religious custom, usage or ceremony or [1][taking part in, or taking out, any religious, social or cultural procession]; or

(*xi*) the use of jewellery and finery,

[2][shall be punishable with imprisonment for a term of not less than one month and not more than six months and also with fine which shall be not less than one hundred rupees and not more than five hundred rupees.]

[3] [*Explanation*.—For the purposes of this section, "enforcement of any disability" includes any discrimination on the ground of "untouchability".]

5. Punishment for refusing to admit person to hospitals, etc.—Whoever on the ground of "untouchability"—

(*a*) refuses admission to any person to any hospital, dispensary, educational institution or any hostel [4]***, if such hospital, dispensary, educational institution or hostel is established or maintained for the benefit of the general public or any section thereof; or

(*b*) does any act which discriminates against any such person after admission to any of the aforesaid institutions;

[5][shall be punishable with imprisonment for a term of not less than one month and not more than six months and also with fine which shall be not less than one hundred rupees and not more than five hundred rupees.]

6. Punishment for refusing to sell goods or render services.—Whoever on the ground of "untouchability" refuses to sell any goods or refuses to render any service to any person at the same time and place and on the same terms and conditions at or which such goods are sold or services are rendered to other persons in the ordinary course of business [6][shall be punishable with imprisonment for a term of not less than one month and not more than six months and also with fine which shall be not less than one hundred rupees and not more than five hundred rupees].

7. Punishment for other offences arising out of "untouchability".—(*1*) Whoever—

(*a*) prevents any person from exercising any right accruing to him by reason of the abolition of "untouchability" under article 17 of the Constitution; or

(*b*) molests, injures, annoys, obstructs or causes or attempts to cause obstruction to any person in the exercise of any such right or molests, injures, annoys or boycotts any person by reason of his having exercised any such right; or

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2. Subs. by s. 6, *ibid*., for "taking part in any religious procession" (w.e.f. 19-11-1976).
3. Subs. by s. 6, *ibid*., for certain words (w.e.f. 19-11-1976).
4. Ins. by s. 6, *ibid*. (w.e.f. 19-11-1976).
5. The words "attached thereto" omitted by s. 7, *ibid*. (w.e.f. 19-11-1976).
6. Subs. by s. 7, *ibid*., for certain words (w.e.f. 19-11-1976).
7. Subs. by s. 8, *ibid.*, for certain words (w.e.f. 19-11-1976).

(*c*) by words, either spoken or written, or by signs or by visible representations or otherwise, incites or encourages any person or class of persons or the public generally to practice "untouchability" in any form whatsoever; [1][or]

[1][(*d*) insults or attempts to insult, on the ground of "untouchability", a member of a Scheduled Caste;]

[2][shall be punishable with imprisonment for a term of not less than one month and not more than six months and also with fine which shall be not less than one hundred rupees and not more than five hundred rupees.]

[3][*Explanation I*].—A person shall be deemed to boycott another person who—

(*a*) refuses to let to such other person or refuses to permit such other person, to use or occupy any house or land or refuses to deal with, work for hire for, or do business with, such other person or to render to him or receive from him any customary service, or refuses to do any of the said things on the terms on which such things would be commonly done in the ordinary course of business; or

(*b*) abstains from such social, professional or business relations as he would ordinarily maintain with such other person.

[1][*Explanation II*.—For the purpose of clause (*c*) a person shall be deemed to incite or encourage the practice of "untouchability"—

(*i*) if he, directly or indirectly, preaches "untouchability" or its practice in any form; or

(*ii*) if he justifies, whether on historical, philosophical or religious grounds or on the ground of any tradition of the caste system or on any other ground, the practice of "untouchability" in any form.]

[1][(*1A*) Whoever commits any offence against the person or property of any individual as a repraisal or revenge for his having exercised any right accruing to him by reason of the abolition of "untouchability" under article 17 of the Constitution, shall, where the offence is punishable with imprisonment for a term exceeding two years, be punishable with imprisonment for a term which shall not be less than two years and also with fine.]

(*2*) Whoever—

(*i*) denies to any person belonging to his community or any section thereof any right or privilege to which such person would be entitled as a member of such community or section, or

(*ii*) takes any part in the ex-communication of such person, on the ground that such person has refused to practice "untouchability" or that such person has done any act in furtherance of the objects of this Act,

[2][shall be punishable with imprisonment for a term of not less than one month and not more than six months, and also with fine which shall be not less than one hundred rupees and not more than five hundred rupees.]

[4][**7A. Unlawful compulsory labour when to be deemed to be a practice of untouchability.—**(*1*) Whoever compels any person, on the ground of "untouchability", to do any scavenging or sweeping or to remove any carcass or to flay any animal or to remove the umbilical cord or to do any other job of a similar nature, shall be deemed to have enforced a disability arising out of "untouchability".

(*2*) Whoever is deemed under sub-section (*1*) to have enforced a disability arising out of "untouchability" shall be punishable with imprisonment for a term which shall not be less than three months

1. Ins. by Act 106 of 1976, s. 9 (w.e.f. 19-11-1976).
2. Subs. by s. 9, *ibid*., for certain words (w.e.f. 19-11-1976).
3. The existing *Explanation* renumbered as *Explanation* I by s. 9, *ibid*. (w.e.f 19-11-1976).
4. Ins. by s. 10, *ibid.* (w.e.f. 19-11-1976).

and not more than six months and also with fine which shall not be less than one hundred rupees and not more than five hundred rupees.

Explanation.—For the purposes of this section, "compulsion" includes a threat of social or economic boycott.]

8. Cancellation or suspension of licences in certain cases.—When a person who is convicted of an offence under section 6 holds any licence under any law for the time being in force in respect of any profession, trade, calling or employment in relation to which the offence is committed, the court trying the offence may without prejudice to any other penalty to which such person may be liable under that section, direct that the licence shall stand cancelled or be suspended for such period as the court may deem fit, and every order of the court so cancelling or suspending a licence shall have effect as if it had been passed by the authority competent to cancel or suspend the licence under any such law.

Explanation.—In this section, "licence" includes a permit or a permission.

9. Resumption or suspension of grants made by Government.—Where the manager or trustee of a place of public worship [1][for any educational institution or hostel] which is in receipt of a grant of land or money from the Government is convicted of an offence under this Act and such conviction is not reversed or quashed in any appeal or revision, the Government may, if in its opinion the circumstances of the case warrant such a course, direct the supension or resumption of the whole or any part of such grant.

10. Abetment of offence.—Whoever abets any offence under this Act shall be punishable with the punishment provided for the offence.

[2][*Explanation*.— A public servant who wilfully neglects the investigation of any offence punishable under this Act shall be deemed to have abetted an offence punishable under this Act.]

[3]**[10A. Power of State Government to impose collective fine.—**(*1*) If, after an inquiry in the prescribed manner, the State Government is satisfied that the inhabitants of an area are concerned in, or abetting the commission of, any offence punishable under this Act, or harbouring persons concerned in the commission of such offence or failing to render all the assistance in their power to discover or apprehend the offender or offenders or suppressing material evidence of the commission of such offence, the State Government may, by notification in the Official Gazette, impose a collective fine on such inhabitants and apportion such fine amongst the inhabitants who are liable collectively to pay it, and such apportionment shall be made according to the State Government's judgment of the respective means of such inhabitants and in making any such apportionment the State Government may assign a portion of such fine to a Hindu undivided family to be payable by it:

Provided that the fine apportioned to an inhabitant shall not be realised until the petition, if any, filed by him under sub-section (*3*) is disposed of.

(*2*) The notification made under sub-section (*1*) shall be proclaimed in the area by beat of drum or in such other manner as the State Government may think best in the circumstances to bring the imposition of the collective fine to the notice of the inhabitants of the said area.

(*3*) (*a*) Any person aggrieved by the imposition of the collective fine under sub-section (*1*) or by the order of apportionment, may, within the prescribed period, file a petition before the State Government or such other authority as that Government may specify in this behalf for being exempted from such fine or for modification of the order or apportionment:

1. Ins. by Act 106 of 1976, s. 11 (w.e.f. 19-11-1976).
2. Ins. by s. 12, *ibid.* (w.e.f. 19-11-1976).
3. Ins. by s. 13, *ibid*. (w.e.f. 19-11-1976).

Provided that no fee shall be charged for filing such petition.

(*b*) The State Government or the authority specified by it shall, after giving to the petitioner a reasonable opportunity of being heard, pass such order as it may think fit:

Provided that the amount of the fine exempted or reduced under this section shall not be realisable from any person, and the total fine imposed on the inhabitants of an area under sub-section (*1*) shall be deemed to have been reduced to that extent.

(*4*) Notwithstanding anything contained in sub-section (*3*), the State Government may exempt the victims of any offence punishable under this Act or any person who does not, in its opinion, fall within the category of persons specified in sub-section (*1*), from the liability to pay the collective fine imposed under sub-section (*1*) or any portion thereof.

(*5*) The portion of collective fine payable by any person (including a Hindu undivided family) may be recovered in the manner provided by the Code of Criminal Procedure, 1973 (2 of 1974), for the recovery of fines imposed by a Court as if such portion were a fine imposed by a Magistrate.]

11. Enhanced penalty on subsequent conviction.—Whoever having already been convicted of an offence under this Act or of an abetment of such offence is again convicted of any such offence or abetment, [1][shall, on conviction, be punishable—

(*a*) for the second offence, with imprisonment for a term of not less than six months and not more than one year, and also with fine which shall be not less than two hundred rupees and not more than five hundred rupees;

(*b*) for the third offence or any offence subsequent to the third offence with imprisonment for a term of not less than one year and not more than two years, and also with fine which shall be not less than five hundred rupees and not more than one thousand rupees.]

12. Presumption by courts in certain cases.—Where any act constituting an offence under this Act is committed in relation to a member of a Scheduled Caste [2]***, the court shall presume, unless the contrary is proved, that such act was committed on the ground of "untouchability".

13. Limitation of jurisdiction of civil courts.—(*1*) No civil court shall entertain or continue any suit or proceeding or shall pass any decree or order or execute wholly or partially any decree or order if the claim involved in such suit or proceeding or if the passing of such decree or order or if such execution would in any way be contrary to the provisions of this Act.

(*2*) No court shall, in adjudicating any matter or executing any decree or order, recognise any custom or usage imposing any disability on any person on the ground of "untouchability".

14. Offences by companies.—(*1*) If the person committing an offence under this Act is a company, every person who at the time the offence was committed was in charge of, and was responsible to, the company for the conduct of the business of the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment, if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of such offence.

1. Subs. by Act 106 of 1976, s. 14, for certain words (w.e.f. 19-11-1976).
2. The words, brackets and figures "as defined in clause (24) of article 366 of the Constitution" omitted by s. 15, *ibid*. (w.e.f. 19-11-1976).

(*2*) Notwithstanding anything contained in sub-section (*1*), where an offence under this Act has been committed with the consent of any director or manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation.—For the purposes of this section,—

(*a*) "company" means any body corporate and includes a firm or other association of individuals; and

(*b*) "director" in relation to a firm means a partner in the firm.

[1][**14A. Protection of action taken in good faith.**—(*1*) No suit, prosecution or other legal proceeding shall lie against the Central Government or a State Government for anything which is in good faith done or intended to be done under this Act.

(*2*) No suit or other legal proceeding shall lie against the Central Government or a State Government for any damage caused or likely to be caused by anything which is in good faith done or intended to be done under this Act.]

[2][**15. Offences to be cognizable and triable summarily.—**(*1*) Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), every offence punishable under this Act shall be cognizable and every such offence, except where its punishable with imprisonment for a minimum term exceeding three months, may be tried summarily by a Judicial Magistrate of the first class or in a metropolitan area by a Metropolitan Magistrate in accordance with the procedure specified in the said Code.

(*2*) Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), when any public servant is alleged to have committed the offence of abetment of an offence punishable under this Act, while acting or purporting to act in the discharge of his official duty, no Court shall take cognizance of such offence of abetment except with the previous sanction—

(*a*) of the Central Government, in the case of a person employed in connection with the affairs of the Union; and

(*b*) of the State Government, in the case of a person employed in connection with the affairs of a State.

15A. Duty of State Government to ensure that the rights accruing from the abolition of "untouchability" may be availed of by the concerned persons.—(*1*) Subject to such rules as the Central Government may make in this behalf, the State Government shall take such measures as may be necessary for ensuring that the rights arising from the abolition of "untouchability" are made available to, and are availed of by, the persons subjected to any disability arising out of "untouchability".

(*2*) In particular, and without prejudice to the generality of the provisions of sub-section (*1*), such measures may include—

(*i*) the provision of adequate facilities, including legal aid, to the persons subjected to any disability arising out of "untouchability" to enable them to avail themselves of such rights;

(*ii*) the appointment of officers for initiating or exercising supervision over prosecutions for the contravention of the provisions of this Act;

(*iii*) the setting up of special courts for the trial of offences under this Act;

1. Ins. by Act 106 of 1976, s. 16 (w.e.f. 19-11-1976).
2. Subs. by s. 17, *ibid*., for s. 15 (w.e.f. 19-11-1976).

(*iv*) the setting up of Committees at such appropriate levels as the State Government may think fit to assist the State Government in formulating or implementing such measures;

(*v*) provision for a periodic survey of the working of the provisions of this Act with a view to suggesting measures for the better implementation of the provisions of this Act;

(*vi*) the identification of the areas where persons are under any disability arising out of "untouchability" and adoption of such measures as would ensure the removal of such disability from such areas.

(*3*) The Central Government shall take such steps as may be necessary to coordinate the measures taken by the State Governments under sub-section (*1*).

(*4*) The Central Government shall, every year, place on the Table of each House of Parliament, a report on the measures taken by itself and by the State Governments in pursuance of the provisions of this section.]

16. Act to override other laws.—Save as otherwise expressly provided in this Act, the provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force, or any custom or usage or any instrument having effect by virtue of any such law or any decree or order of any Court or other authority.

[1][**16A. Probation of Offenders Act, 1958, not to apply to persons above the age of fourteen years.—**The provisions of the Probation of Offenders Act, 1958 (20 of 1958), shall not apply to any person above the age of fourteen years who is found guilty of having committed any offence punishable under this Act.]

16B. Power to make rules.—(*1*) The Central Government may, by notification in the Official Gazette, make rules to carry out the provisions of this Act.

(*2*) Every rule made by the Central Government under this Act shall be laid, as soon as may be after it is made, before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.]

17. Repeal.—The enactments specified in the Schedule are hereby repealed to the extent to which they or any of the provisions contained therein correspond or are repugnant to this Act or to any of the provisions contained therein.

1. Ins. by Act 106 of 1976, s. 18 (w.e.f. 19-11-1976).

THE SCHEDULE

(*See* section 17)

1. The Bihar Harijan (Removal of Civil Disabilities) Act, 1949 (Bihar Act XIX of 1949).
2. The Bombay Harijan (Removal of Social Disabilities) Act, 1946 (Bombay Act X of 1947).
3. The Bombay Harijan Temple Entry Act, 1947 (Bombay Act XXXV of 1947).
4. The Central Provinces and Berar Scheduled Castes (Removal of Civil Disabilities) Act, 1947 (Central Provinces and Berar Act XXIV of 1947).
5. The Central Provinces and Berar Temple Entry Authorisation Act, 1947 (Central Provinces and Berar Act XLI of 1947).
6. The East Punjab (Removal of Religious and Social Disabilities) Act, 1948 (East Punjab Act XVI of 1948).
7. The Madras Removal of Civil Disabilities Act, 1938 (Madras Act XXI of 1938).
8. The Orissa Removal of Civil Disabilities Act, 1946 (Orissa Act XI of 1946).
9. The Orissa Temple Entry Authorisation Act, 1948 (Orissa Act XI of 1948).
10. The United Provinces Removal of Social Disabilities Act, 1947 (U.P. Act XIV of 1947).
11. The West Bengal Hindu Social Disabilities Removal Act, 1948 (West Bengal Act XXXVII of 1948).
12. The Hyderabad Harijan Temple Entry Regulations, 1358 F (No. LV of l358F Fasli).
13. The Hyderabad Harijan (Removal of Social Disabilities) Regulations, 1358F (No. LVI of 1358F. Fasli).
14. The Madhya Bharat Harijan Ayogta Nivaran Vidhan, Samvat 2005 (Madhya Bharat Act No. 15 of 1949).
15. The Removal of Civil Disabilities Act, 1943 (Mysore Act XLII of 1943).
16. The Mysore Temple Entry Authorisation Act, 1948 (Mysore Act XIV of 1948).
17. The Saurashtra Harijan (Removal of Social Disabilities) Ordinance (No. XL of 1948).
18. The Travancore-Cochin Removal of Social Disabilities Act, 1125K (Travancore-Cochin Act VIII of 1125).
19. The Travancore-Cochin Temple Entry (Removal of Disabilities) Act, 1950 (Travancore-Cochin Act XXVII of 1950).
20. The Coorg Scheduled Castes (Removal of Civil and Social Disabilities) Act, 1949 (Coorg Act I of 1949).
21. The Coorg Temple Entry Authorisation Act, 1949 (Coorg Act II of 1949).

IndiaCode

STATEMENT OF OBECTIONS AND REASONS

"Under Article 17 of the Constitution, untouchability is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of untouchability shall be an offence punishable in accordance with law. As no Central law exits on the subject, a law has to be enacted by Parliament as required by sub-clause (ii) of clause (a) of article 35 of the Constitution and the Bill has been prepared in pursuance of this requirement.

It is not possible to define untouchability and, therefore, the scheme of the draft Bill is to make express provisions with respect to the more common forms of untouchability which are practiced in India. The special features of this Bill as compared with the existing State laws on the subject are that—

(a) the Bill is not confined to Hindus;

(b) an untouchable shall not cease to be an untouchable if he resides in any locality other than the locality mentioned in relation to him under the Constitution (Scheduled Castes) Order 1950;

(c) whoever takes any part in the excommunication of, or imposition of any social disability on, any person who refuses to practice untouchability or does any act in furtherance of the objects of this new law will also be guilty of an offence;

(d) in addition to the normal penalty for an offence, the Court may also cancel or suspend, any license in respect of profession, trade, calling or employment when an offence is committed under this law during the course of any such profession, trade, calling or employment.

Offences under this new law are to the cognizable.

IndiaCode

NEW DELHI; K.N. KATJU
19*th December*, 1955.